

City Contract No. _____

**MEMORANDUM OF UNDERSTANDING BETWEEN
LARAMIE COUNTY SCHOOL DISTRICT NUMBER ONE AND
THE CITY OF CHEYENNE, WYOMING**

1. **Parties.** This Memorandum of Understanding (MOU) is made and entered into by and between Laramie County School District Number 1 (District), whose address is 2810 House Avenue, Cheyenne, WY 82001, and the City of Cheyenne, Wyoming (City), through the Cheyenne Police Department, whose address is 415 W. 18th Street, Cheyenne, Wyoming 82001.
2. **Purpose.** The purpose of this MOU is to delineate the terms under which the City will provide school resource officer services to District schools within the recognized jurisdiction of the City and at school-related events during the academic year, including summer school of each year (Academic Year), under the School Resource Officer Program (SRO). The primary charge of the SRO Program is the reduction, prevention, and responsiveness to school-related violence and crime. The SRO Program creates and maintains a safe, secure, and crime-free learning environment for students, educators and the District. In addition, the SRO Program is designed to develop and enhance rapport between youth, parents, the surrounding school community, police officers, school leaders, and staff.
3. **Term of MOU.** This MOU shall commence upon the day and date last signed and executed by the duly authorized representatives of the parties to this MOU and shall remain in full force and effect until August 31, 2027. This MOU shall specifically supersede any prior MOU entered into by the Parties and in effect at the commencement of this MOU.
4. **Payment.** The District agrees to pay the City for the services described herein. Specifically, the District shall pay as follows:
 - A. The District shall reimburse the City for the salary and benefit costs identified in Attachment A, as adjusted for actual, annual, and incremental changes in salary and benefit personnel expenses, and for any Additional Costs incurred under this MOU.
 - B. All costs of salary and benefits incurred by the City in the performance of duties under this MOU shall be paid by the City, and the District shall reimburse the City for all such costs.
 - C. Amounts due under this MOU shall be invoiced to the District monthly and in arrears.
 - D. The City will provide cellular phones for use in official communications with District employees. The phones shall remain the property of the City. The District agrees to be responsible for all the costs associated with the cellular service plan.

The City agrees to be responsible for the cost of the phones themselves, including any related hardware, as well as maintenance, upgrades, and replacements.

5. **Responsibilities of District.**

- A. The District agrees that school-requested SRO attendance at events occurring outside of normal school hours or outside the Academic Year constitutes Additional Costs. For purposes of this MOU, "Additional Costs" means actual personnel costs incurred by the City for school-requested SRO services that are not included in the regular SRO salary and benefit costs identified in Attachment A, including overtime, premium pay, associated mandatory payroll costs, and the actual cost of any additional or replacement officer assigned by the City for the requested event or service. Additional Costs do not include ordinary City equipment or administrative overhead unless the parties agree in writing before the cost is incurred.
- B. The District agrees that SRO attendance at events occurring outside of normal school hours or outside the Academic Year is subject to the mutual agreement of the District and City. The District may request that the City flex an SRO's schedule to assist at such events, but any schedule adjustment shall remain subject to City staffing, operational needs, applicable law, and City Police Department policies.
- C. The District shall designate and provide the City with contact information for a District point of contact responsible for coordinating the SRO program.
- D. The District agrees to coordinate with the City and share information to the extent allowed by law.
- E. The District agrees that it is responsible for student discipline for behaviors occurring on District property or at District activities.
- F. The District acknowledges that violations of District or school policies, student discipline issues, or other matters that do not rise to the level of criminal activity remain the general purview of the District. Accordingly, student behavioral problems or similar events, unless criminal in nature or posing a threat of imminent physical danger to the student or others, will not generally result in the use of police force to restrain, detain, or otherwise restrict the activities of a student or students engaged in such activity. The District agrees that it shall not involve the SRO in school discipline matters unless school or public safety is at risk or reporting is required by law.
- G. The District agrees that the school principal or principal's designee, absent emergency circumstances, will determine whether to involve SRO or other City Police Department personnel in any matter.

- H. The District agrees that SRO or City Police Department referrals may be made for the following:
- (i) Assaults or battery;
 - (ii) Felony or violent criminal offenses, including but not limited to robbery, extortion, arson, or sexual assault;
 - (iii) Use or possession of dangerous weapons by a student, including but not limited to: knives, guns, and explosive devices;
 - (iv) Sale, possession, or use of illegal drugs, tobacco/nicotine products, or alcohol;
 - (v) Threats of physical harm to school employees or the public; and
 - (vi) Destruction, damage, and vandalism of District property.
- I. The District agrees the SRO shall comply with City Police Department policies and procedures; where City Police Department policies conflict with District policies and procedures, SRO shall defer to the City Police Department policies and procedures.
- J. Except in emergency, urgent, or preliminary public safety inquiry circumstances, SROs shall follow these conditions for interviewing or searching students suspected of criminal activity:
- (i) SROs may question a student about subjects that may result in or identify a crime, threat, or concern utilizing the following process. Unless an emergency or urgent circumstance exists, any law enforcement officer (LEO) desiring to question a student at school must notify the school principal or the principal's designee in advance so that permission for questioning may be obtained from a parent or guardian of the child.
 - (ii) Once notified that a parent or guardian asks that the student not be questioned until he/she or his/her designee arrives, the principal will advise the LEO and ask that the officer wait to question the student until the parent or guardian arrives.
 - (iii) If the parent or guardian cannot be reached, the student may be questioned by the officer with the principal or the principal's designee present. The principal or his/her designee must be present when any law enforcement interview of a child is conducted on school property.
 - (iv) Pursuant to Wyoming Statute 14-6-206(c), after issuing any citation to a child for a violation of a state law or a municipal ordinance for

which incarceration or a fine may be imposed, the law enforcement agency issuing the citation or its designee shall take reasonable actions to notify the child's parent, guardian or custodian. SROs will only be responsible for issuing citations related to violations of law, not violations of school or district rules or policies.

- (v) If the parent or guardian is the subject of a potential abuse or neglect allegation, neither the LEO nor the Department of Family Services (DFS) is required to, nor may the principal or his/her designee, notify the parent or guardian prior to a LEO and/or DFS questioning the child. In such circumstances, the LEO and/or DFS representative shall question the student with the principal or his/her designee present.
 - (vi) If there are exigent or urgent circumstances that prevent prior parental notification.
 - a) Parent or guardian shall be notified as soon as reasonably possible.
 - b) School personnel will serve '*in loco parentis*' (in place of a parent or guardian).
 - (vii) Absent exigent or urgent circumstances, a principal or designee shall be consulted before the SRO conducts questioning of a student or searches a student's person, possessions, or locker to allow time to express any concerns about reasonableness and to notify a parent or guardian.
 - (viii) When there is probable cause to believe the student has committed or is committing a felony offense or the offense at issue poses a threat of serious and immediate injury, the SRO may conduct questioning or a search at school without notice to school personnel, a parent or guardian.
 - (ix) SROs may not request that school officials conduct a search of the student's person, possessions, or locker to evade the probable cause standard required of law enforcement.
 - (x) Nothing herein shall prevent the SRO from engaging students in casual conversation about subjects other than inquiries related to suspected criminal activity.
- K. The District agrees that SRO audio and/or video recordings constitute "peace officer recordings" under the Wyoming Public Records Act. *See* Wyo. Stat. § 16-4-201(a)(xi). As such, SRO peace officer recordings are the sole property of the City and may not be released except as permitted by law.

- L. The District will timely notify the SRO or the City Police of any student with disabilities that require specialized treatment or accommodation regarding any matter referred to the SRO by the District.
- M. The District shall provide each SRO a private and secure office space at the appropriate school with access to technology support.
- N. **Camera System Access and Use.**
 - (i) Access to District Security Camera Systems. The District's security camera systems are maintained as school safety and security tools. Access by SROs or other Police Department personnel shall be limited to legitimate school safety, emergency response, and specific incident-response purposes, and shall not be used for generalized law enforcement surveillance, routine monitoring of students or staff, or exploratory searches for violations of law or District policy. The District shall provide access to the SRO assigned to the school where the camera is located. In addition, the SRO Supervisor shall have access to all school cameras. Temporary access to additional cameras may be granted to SROs for coverage, emergency response, or incident command. During an active threat, lockdown, active shooter incident, or other serious emergency, the District may temporarily expand access to additional Police Department personnel or incident command as reasonably necessary to protect health or safety.
 - (ii) Copying, Recording, Reproduction, and Disclosure of Camera Footage. Unless exigent circumstances require immediate action to protect health or safety, SROs and City Police Department personnel shall not download, export, copy, photograph, screenshot, record with a body-worn camera or personal device, transmit, or otherwise reproduce District camera footage without prior authorization from the Superintendent, or designee, or without a subpoena, warrant, court order, consent, or other lawful process. Any copy lawfully provided to the City shall be used only for the identified purpose and shall not be redisclosed except as permitted by the Family Educational Rights and Privacy Act (FERPA), other applicable law, court order, or written authorization from the District. Nothing in this subsection shall be construed to limit access to or use of the District's security camera systems as authorized under subsection (i).
- O. The District shall provide each SRO limited access to the District's Infinite Campus system to include student name, address, parent or guardian contact information, in accordance with local, state and federal law. The SROs will be required to complete annual FERPA training. The training will be required prior to or at the beginning of the new school year and will be provided by the District at no cost to the City. The District will maintain the SRO's training records depicting the FERPA training was completed. The SRO will not include any information from Infinite Campus in any report or formal record of a law enforcement investigation.

- P. The District shall provide the SRO access to all school facilities for the purposes of official duties.
- Q. The District understands and agrees the SRO may be immediately recalled for public emergencies. The parties agree that SRO recall for public emergencies is not a material breach of this MOU and there is no penalty to the City.

6. **Responsibilities of the City.**

- A. The City agrees to provide the District with seven (7) SROs and one SRO Supervisor for the 2026-2027 Academic Year. The SRO Supervisor's responsibilities will be to manage and coordinate the City's performance under this MOU.
- B. The City agrees that SRO duties are to respond to and investigate criminal acts on District property and/or at District events during normal school hours, or as otherwise agreed to, during the Academic Year.
- C. The City agrees that the SRO may initiate appropriate law enforcement actions to address criminal matters, including matters that threaten the safety and security of the school or its occupants, and/or intervene with staff or students when necessary to ensure the immediate safety of persons in the school environment in light of an actual or imminent threat to health or safety. Any such intervention shall be reasonably calculated to protect the physical safety of members within the school community, while minimizing, to the extent possible, any unintended negative effects on students. All law enforcement actions and interventions to protect the safety of others shall be consistent with all applicable laws, regulations, and policies.
- D. The City agrees that except for felony offenses or criminal offenses that constitute a threat to the safety of the school or public ("Serious Offenses"), the SRO will notify and consult with the school principal or his or her designee prior to questioning a student.
- E. The City agrees that except for Serious Offenses, the SRO will delay questioning a student until the parent or guardian arrives.
- F. The City agrees that except for Serious Offenses, the school principal or his or her designee shall be present for student interviews and searches on District property.
- G. The City will take reasonable action to notify the parent or guardian of any student issued a citation. *See* Wyo. Stat. § 14-6-206(c).
- H. The City agrees that the SROs may not request that school officials conduct a search of the student's person, possessions, or locker to avoid probable cause standards.

- I. The City agrees that an SRO may provide educational support, when applicable, for in-service training for school staff and students on emergency preparedness, crisis intervention, crime trends, law enforcement policies, and intervention methods.
- J. The City agrees that the school may request assistance of an SRO to conduct a search of a student's person, possessions, or locker on behalf of the school when the school has a reasonable suspicion of a violation of school policy or law by the student. Any search will be conducted at the sole discretion of the SRO and in accordance with applicable law and City Police Department policies.
- K. The City acknowledges that District records, student information, and District security camera footage may be protected by FERPA, state confidentiality laws, District policy, or other applicable law. SROs and City Police Department personnel shall request, access, use, and redisclose such records or footage only as authorized by Section 5(N), or with written District authorization, a valid FERPA exception, consent, subpoena, warrant, court order, or other lawful process.
- L. The City agrees to provide a replacement officer if the assigned SRO will be absent for ten (10) or more consecutive school days. The replacement officer will cover the SRO's duty assignment at the actual cost of the replacement officer. Further, the District shall not be billed for periods when individual SROs are absent from their assigned duties/school(s), to include periods of professional training for collateral duty. The SRO is encouraged, when possible, to take personal leave during scheduled school breaks.

7. **Special Provisions.**

- A. SROs will be selected by means of a joint selection committee, comprised of representatives from the District who will be appointed by the Superintendent of Schools and representatives from the City appointed by the Chief of Police. The committee will make recommendations to the Chief of Police; however, final selection of any SRO is at the sole discretion of the City.
- B. SRO training specific to law enforcement duties shall be provided and paid for by the City. Training for SRO in areas that are specific to juvenile crimes and SRO duties may be provided by the City and District. The District will provide overview and familiarization with District techniques and procedures to SROs as necessary and with content relevant to SRO duties. The District's Safety and Security Program Administrator will coordinate dates and times of this training with the SRO's supervisor. Training requests will be made to the SRO Supervisor and the Superintendent of Schools or the District's Safety and Security Program

Administrator. At least sixty (60) days prior to the expiration of this MOU, the City and the District will jointly evaluate the SRO program.

- C. The City will evaluate the effectiveness of each SRO. The City shall seek input from the District for each evaluation.
- D. SROs assigned to provide services under this MOU shall, at all times, be employees of the City. The City shall comply with all federal, state, and local laws and ordinances regarding the employment relationship between the City and SROs assigned to provide services under this MOU.
- E. Long Term Official School Closure: Should any non-weather-related event require long-term official closure of school locations for more than five (5) consecutive school days, the District may request limited law enforcement services with the balance of SRO's daily hours redirected to supervise schools and/or released back to the City as best represents the interests of both the City and the District. If such interests cannot be agreed upon, this MOU shall be suspended for the remainder of the period of the official closure, and payments vacated for duties not performed during such period.

8. **General Provisions.**

- A. **Amendments.** Either party may request changes in this MOU. Any changes, modifications, revisions, or amendments to this MOU that are mutually agreed upon by the parties to this MOU shall be incorporated by written instrument, executed and signed by all parties to this MOU.
- B. **Applicable Law.** The construction, interpretation, and enforcement of this MOU shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this MOU and over the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.
- C. **Availability of Funds.** Each payment obligation of either party is conditioned upon the availability of government funds which are appropriated or allocated for the payment of this obligation. If funds are not allocated and available for the continuance of the services performed by either party, the MOU may be terminated by either party at the end of the period for which the funds are available. Each party shall notify the other party at the earliest possible time of the services which will or may be affected by a shortage of funds. No penalty shall accrue to either party in the event this provision is exercised, and neither party shall be obligated or liable for any future payments due or for any damages as a result of termination under this section. This provision shall not be construed to permit either party to terminate this MOU to acquire similar services from another source.

- D. **Entirety of Agreement.** This MOU, consisting of ten (10) pages, and Attachment A, Salary and Equipment Costs consisting of (1) page, represents the entire and integrated agreement between the parties and supersedes all prior negotiations, representations and agreements, whether written or oral.
- E. **Governmental Immunity.** Neither party waives governmental immunity by entering into this MOU and specifically retains all immunities and defenses available to it pursuant to Wyoming Statutes §§ 1-39-101 through -120 and all other applicable law. Designations of venue, choice of law, enforcement actions, and similar provisions should not be construed as a waiver of governmental immunity. The parties agree that any ambiguity in this MOU shall not be strictly construed, either against or for either party, except that any ambiguity as to governmental immunity shall be construed in favor of governmental immunity.
- F. **Indemnification.** Each party to this MOU shall assume the risk of any liability arising from its own conduct. Neither party agrees to insure, defend or indemnify the other.
- G. **Independent Contractor.** Nothing in this MOU shall be interpreted as authorizing either party or its agents and/or employees to act as an agent or representative for or on behalf of the other party or to incur any obligation of any kind on the behalf of the other party.
- H. **Severability.** Should any portion of this MOU be judicially determined to be illegal or unenforceable, the remainder of the MOU shall continue in full force and effect, and either party may renegotiate the terms affected by the severance.
- I. **Termination of MOU.** This MOU may be terminated, without cause, by either party upon thirty (30) days written notice. This MOU may be terminated immediately for cause if the City or District materially fails to perform in accordance with the terms of this MOU and fails to cure the breach within a reasonable time after written notice, unless the breach cannot reasonably be cured or immediate termination is necessary to protect public safety or the lawful operation of the SRO Program.
- J. **Third Party Beneficiary Rights.** The parties do not intend to create in any other individual or entity the status of third party beneficiary, and this MOU shall not be construed so as to create such status. The rights, duties, and obligations contained in this MOU shall operate only between the parties to this MOU and shall inure solely to the benefit of the parties to this MOU. The provisions of this MOU are intended only to assist the parties in determining and performing their obligations under this MOU.
- K. **Titles Not Controlling.** Titles of paragraphs are for reference only and shall not be used to construe the language in this MOU.

L. **Waiver.** The waiver of any breach of any term or condition in this MOU shall not be deemed a waiver of any prior or subsequent breach. Failure to object to a breach shall not constitute a waiver.

9. **Signatures.** The parties to this MOU through their duly authorized representatives have executed this MOU on the dates set out below, and certify that they have read, understood, and agreed to the terms and conditions of this MOU as set forth herein.

The effective date of this MOU is the date of the signature last affixed to this page.

CITY OF CHEYENNE

Patrick Collins, Mayor

Date

(S E A L)

ATTEST:

Kylie Soden, City Clerk

DISTRICT

Alicia Smith, Chair
Laramie County School District #1

Date

CITY ATTORNEY'S OFFICE APPROVAL AS TO FORM



John Brodie

7/31/2026
Date

LARAMIE COUNTY SCHOOL DISTRICT NUMBER 1 APPROVAL AS TO FORM

Amy A. Pauli

Date

ATTACHMENT A

SALARY COSTS

*** (SUBJECT TO ACTUAL, ANNUAL, INCREMENTAL CHANGES OF SALARY AND BENEFITS PERSONNEL EXPENSES) 2026-2027 School-Year:**

1. The District will pay the City annually for the use of seven (7) SROs and one (1) SRO Supervisor.
 - a. The District is responsible for paying seventy percent (75%) of the combined estimated annual salary and benefits of each of the seven (7) SROs and one (1) SRO Supervisor. The estimated annual salary and benefits for each of the seven SROs and one (1) SRO Supervisor is seven hundred sixty-five thousand six hundred fifteen dollars and nine cents (\$765,615.09), plus any overtime.